



CHAPTER 25

An Act to enable Her Majesty to place Christmas Island under the Authority of the Commonwealth of Australia, and for purposes connected therewith.

[14th May, 1958]

WHEREAS by the Christmas Island Order in Council, 1957, made under the Straits Settlements (Repeal) Act, 1946, ^{9 & 10 Geo. 6. c. 37.} the island named Christmas Island, situated in the Indian Ocean in or about the thirtieth minute of the tenth degree of South Latitude and the fortieth minute of the one hundred and fifth degree of East Longitude, was constituted as a separate colony under the name of the Colony of Christmas Island:

And whereas the Parliament and Government of the Commonwealth of Australia have requested and consented to the enactment of this Act:

And whereas by section one hundred and twenty-two of the Constitution of the Commonwealth of Australia it is provided that the Parliament of the said Commonwealth may make laws for the government of any territory placed by the Queen under the authority of and accepted by the Commonwealth.

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Her Majesty may by Order in Council direct that Christmas Island shall, on such date as may be specified in the Order, be placed under the authority of the Commonwealth of Australia. Transfer of Christmas Island to Australia.

(2) As from the date specified as aforesaid, the Straits Settlements (Repeal) Act, 1946, and the British Settlements Acts, 1887 and 1945, as applied by that Act, shall have effect as if references in the said Act of 1946 to Christmas Island were omitted, and (subject to such provision as may be made in pursuance of subsection (3) of this section) the Christmas Island Order in Council, 1957, shall cease to have effect.

(3) Her Majesty may by Order in Council make provision—

(a) for the transfer, subject to such exceptions as may be specified in the Order, of property, rights, powers, obligations or liabilities held, enjoyed or incurred by or on behalf of Her Majesty in right of Her Government in the United Kingdom or of the Government of the Colony of Singapore or of Christmas Island, or by or on behalf of any of those governments, being property, rights, powers, obligations or liabilities held, enjoyed or incurred in or in connection with Christmas Island and subsisting on the date specified as aforesaid;

(b) for the exercise on and after the date so specified of—

(i) the jurisdiction in Christmas Island of any court outside that Island in relation to proceedings pending on that date;

(ii) any powers of Her Majesty in respect of sentences imposed before that date by any court having jurisdiction in Christmas Island;

(iii) any powers or duties conferred or imposed by or under the law of Singapore in relation to persons lawfully removed from Christmas Island to Singapore before that date,

and for the continuance, with any necessary modification, of any provisions of the said Order of 1957 relating to such jurisdiction, powers or duties;

(c) for such other purposes, if any, not being purposes of the government of Christmas Island, as appear to Her Majesty to be expedient in consequence of its being placed under the authority of the said Commonwealth.

Short title.

2. This Act may be cited as the Christmas Island Act, 1958.

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